



सत्यमेव जयते

केन्द्रीय सतर्कता आयोग
CENTRAL VIGILANCE COMMISSION



सतर्कता भवन, जी.पी.ओ. कॉम्प्लेक्स,
ब्लॉक-ए, आई.एन.ए., नई दिल्ली-110023
Satarkta Bhawan, G.P.O. Complex,
Block A, INA, New Delhi-10023

सं./No. 022/VGL/067

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Circular No. 26/12/2022

Subject: Commission's Jurisdiction over Officers of Public Sector Insurance Companies and Public Sector Undertakings, clarification- regarding.

In accordance with the provision contained under Section 8 (2) (b) of the CVC Act, 2003, Department of Personnel and Training, vide Gazette Notification dated 12.09.2007 had specified the level of officers, belonging to Corporations, Govt. Companies, Societies and other Local Authorities, covered under the jurisdiction of the Central Vigilance Commission.

2. In the Gazette Notification, the level of officers, in respect of Public Sector Undertakings and General Insurance Companies, covered under the jurisdiction of Central Vigilance Commission, has been specified as below:-

Sl. No.	Public Sector Undertakings and General Insurance Companies	Level of officers
(i)	Schedule 'A' and 'B' Public Sector Undertakings	Chief Executive and Executives on the Board and other officers of E-8 and above.
(ii)	Schedule 'C' and 'D' Public Sector Undertakings	Chief Executive and Executives on the Board and other officers of E-7 and above.
(iii)	General Insurance Companies	Manager and above.

3. As can be seen from the Gazette Notification dated 12.09.2007, the "designation" is the criteria for determining the level of officers, covered under

the jurisdiction of the Commission in respect of Public Sector Undertakings and General Insurance Companies.

4. At the time of publication of Gazette Notification dated 12.09.2007, the officers of the level of Managers in General Insurance Companies, were drawing pay in Scale-V. However, presently, they are drawing pay in Scale-IV. It has come to notice that some of the General Insurance Companies have unilaterally decided not to forward vigilance cases of their Manager level officers to the Commission, for obtaining its advice, presuming that officers drawing pay in Scale-IV are not covered under the jurisdiction of Central Vigilance Commission.

5. Further, as per Gazette Notification dated 12.09.2007, Chief Executives and Executives on the Board and other officers of E-8 and above of schedule 'A' and 'B' Public Sector Undertakings are covered under the jurisdiction of Commission. Similarly, in respect of Schedule 'C' and 'D' Public Sector Undertakings, Chief Executives and Executives on the Board and other officers of E-7 and above are covered under the jurisdiction of Commission. Subsequent to the publication of Gazette Notification dated 12.09.2007, many Public Sector Undertakings have carried out revision of pay, due to which the Executives of the level of E-6, E-7 and E-8 are drawing pay in the same scale i.e. Rs. 1,20,000-2,80,000/-. Resultantly, issue has been raised by some Public Sector Undertakings, asking whether the Executives of E-6 and E-7, who are drawing pay in the same scale as that of E-8 Executives, are also deemed to be covered under the jurisdiction of Central Vigilance Commission.

6. It may be noted that "designation" is the criteria mentioned in the Gazette Notification dated 12.09.2007, to determine the level of officers of Public Sector Undertakings and General Insurance Companies, covered under the Commission's jurisdiction. Therefore, it is clarified that irrespective of pay being drawn by them, the following levels of officers of Public Sector Undertakings and General Insurance Companies shall continue to be covered under the jurisdiction of Central Vigilance Commission:-

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| i) Schedule 'A' and 'B' Public Sector Undertakings :- | Chief Executives and Executives on the Board and other officers of E-8 and above. |
| ii) Schedule 'C' and 'D' Public Sector Undertakings :- | Chief Executives and Executives on the Board and other officers of E-7 and above. |
| iii) General Insurance Companies:- | Managers and above. |

7. Para 1.2.1 (b) (ii) and (iii) of Vigilance Manual, 2021 also stands amended to the above extent.



8. Keeping in view the provisions contained under Para 1.2.2 (a), Para 7.9.5 and Para 7.9.6 of Vigilance Manual 2021, read with Commission's Office Order No. 2/1/04 dated 08.01.2004, a case involving different levels of officers/officials is to be treated as a composite case and Commission's advice would be required, if at least one officer (involved in that case) is covered under the jurisdiction of Central Vigilance Commission.

9. The above clarification may be noted for strict compliance and all vigilance related matters may be processed by the authorities in the respective organizations, accordingly.



(Rajiv Verma)
Director

To

- (i) The Secretaries of all Ministries/Departments of GoI
- (ii) All Chief Executives of CPSUs/Public Sector Banks/Public Sector Insurance Companies/Autonomous Bodies etc.
- (iii) All CVOs of Ministries/Departments of GoI/CPSUs/Public Sector Banks/Public Sector Insurance Companies/Autonomous Bodies etc.
- (iv) Website of CVC